

		Code Civ. Proc., § 2023.040. Therefore, Defendant's request for sanctions is DENIED. Defendant shall give notice.
62	<i>Yahayakshani vs. Roseman Law, APC</i>	Defendant Roseman Law, APC's ("Defendant") Demurrer to Plaintiffs Saied Yahakshani and Vered Corsandi's ("Plaintiffs") Complaint is sustained with leave to amend. <u>Procedural Issues</u> Defendant's request for judicial notice (ROA 28) is granted. (Evid. Code, § 452, subd. (d).) However, judicial notice of court records is limited to "the existence of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments[.]" (<i>Williams v. Wraxall</i> (1995) 33 Cal.App.4th 120, 130, fn. 7.) <u>Merits</u> Defendant generally demurs to Plaintiffs' complaint for professional negligence on, among other grounds, that the claim is barred by the statute of limitations. Defendant contends that Plaintiffs "were on inquiry notice of the pending dismissal [of the underlying LASC case] as early as April 2023." (Dem. at p. 3.) CCP section 340.6 provides: "An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the

date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc., § 340.6, subd. (a).)

It is not appropriate to sustain a demurrer based on the statute of limitations unless the defects “clearly and affirmatively appear on the face of the complaint.” (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

Traditionally, a claim accrues when it is “complete with all of its elements,” “those elements being wrongdoing [or breach], harm, and causation.” (*Stella* supra, 8 Cal.App.5th at p. 191, citations omitted.) But, one exception is the “delayed discovery rule,” which “postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Id.* at pp. 191-192, citing *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) Under the rule, “the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.” (*Id.* at p. 192, citing *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) “In order to rely on the discovery rule for delayed accrual of a cause of action, “[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Here, the Complaint shows *on its face* that, unless the discovery rule applies, Plaintiffs’ professional negligence claim is time-barred. “In order to establish a cause of action for legal

	malpractice the plaintiff must demonstrate: (1) breach of the attorney’s duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a proximate causal connection between the negligent conduct and the resulting injury; and (3) actual loss or damage resulting from the negligence.” (<i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 699.) Per the judicially-noticeable documents, Defendants obtained entry of default in the LASC Case on or about 5/18/22, against Massfran Inc. and Rocky Peak Sheet Metal, Inc. (ROA 28[RJN, Exhs. 7, 8].) On or about 2/17/23, Defendants filed a “proof of service order granting attorney’s motion to be relieved as counsel for [Plaintiffs].” (RJN, Exh. 12.) On 6/30/23, following an OSC, the complaint in the LASC case was dismissed without prejudice. (RJN, Exh. 17.) The Order of Dismissal was entered on 7/3/23. (RJN, Exh. 18.) Plaintiffs allege Defendants breached the duty of care by failing to pursue default judgments against the defaulted defendants in the underlying action, and that the LASC case was ultimately dismissed without prejudice. As such, their malpractice claim arguably accrued when the LASC case was dismissed by Order of Dismissal on 7/3/23, at which time Plaintiffs could no longer pursue a default judgment against the default defendants. That means, the statute of limitations expired on or about 7/3/24 (i.e., within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission). However, Plaintiffs did not file this action until
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10/15/25, making it more than one year too late.

Plaintiffs contend the Complaint, on its face, does not show the action is time-barred, because they allege that they “first learned” about the dismissal of the LASC Case on or about 10/29/24. (Compl. at ¶¶ 14, 19.) However, as Defendants correctly point out, in order to invoke the delayed discovery rule, Plaintiffs’ complaint “must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808, emphasis in original.) “The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury [fn] if they have “ ‘ “information of circumstances to put [them] *on inquiry* ” ’ ” or if they have “ ‘ “*the opportunity to obtain knowledge* from sources open to [their] investigation.” (*Id.* at pp. 807–808, fn omitted.)

Plaintiffs, here, fail to plead any facts in their complaint showing that they could not have discovered the entry of the Order of Dismissal, which was entered on 7/3/23, prior to 10/29/24 (the date of their alleged “discovery), despite reasonable diligence. As such, the demurrer shall be sustained with leave to amend.

Plaintiffs shall file their amended pleading within 15 days of the notice of ruling.

Defendant shall give notice of the ruling.